

24STCV23688 24STCV23688

County: los-angeles

Division: Civil Law and Motion

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Case Number: 24STCV23688 Hearing Date: June 24, 2026 Dept: 730

Superior Court of

California

County of Los Angeles

Department

730

JAMES

A. KAY, JR, an individual,

Plaintiff,

vs.

Mirman,

Bubman & Nahmias, LLP, a California limited liability partnership, et

al.,

Defendants.

Case No.:

24STCV23688

Hearing

Date:

June 24,

2026

[TENTATIVE]

ORDER RE: MOTION FOR LEAVE TO FILE

FIRST AMENDED COMPLAINT

I. BACKGROUND

On

September 13, 2024, Plaintiff James A. Kay, Jr. ("Plaintiff") filed a Complaint

against Defendants Mirman, Bubman & Nahmias, LLP ("MBN"), Alan I. Nahmias

("Nahmias"), Jeffrey Wulkan ("Wulkan"), and DOES 1 through 25 (collectively,

"Defendants"), inclusive for Legal Malpractice.

On

December 3, 2024, MBN, Nahmias, and Wulkan filed a Demurrer to the Complaint.

The matter came for hearing on March 12, 2025 and was overruled. On March 28,

2025, MBN, Nahmias, and Wulkan filed their joint Answer to the Complaint.

On

May 1, 2026, Plaintiff filed the instant Motion for Leave to File First Amended

Complaint ("FAC"). On June 10, 2026, MBN, Nahmias, and Wulkan filed their Opposition. On June 17, 2026, Plaintiff filed a Reply.

II. LEGAL

STANDARD

The court may, in furtherance of justice and on any proper terms, allow a party to amend any pleading by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect. (Code Civ. Proc., § 473, subd. (a)(1); *Branick v. Downey Savings & Loan Association* (2006) 39 Cal.4th 235, 242.) The court may also, in its discretion and after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code. (Code Civ. Proc., § 473, subd. (a)(1); *Branick*, supra, 39 Cal.4th at 242.) As judicial policy favors resolution of all disputed matters between the parties, leave to amend is liberally granted. (See *Kolani v. Gluska* (1998) 64 Cal.App.4th 402, 412.) The court may deny the plaintiff's leave to amend if there is prejudice to the opposing party, such as delay in trial, loss of critical evidence, or added costs of preparation. (Id.)

"Any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper,

may allow the amendment of any pleading or pretrial conference order.” (Code Civ. Proc., § 576.)

III. DISCUSSION

Plaintiff moves for an order granting

leave to file a FAC on the grounds that Plaintiff learned information

during Wulkan’s deposition, which necessitates amending the operative

Complaint. Specifically, Plaintiff contends that Wulkan testified at his March

2026 deposition that he only tried one other jury trial in his career and it

was not a collection-related matter, which is different from the statements

made to Plaintiff when he hired MBN, Nahmias, and Wulkan (collectively,

“Attorney Defendants”). (Mot. at 5:25-6:2.)

In opposition, Attorney Defendants argue

that the motion should be denied because the proposed FAC asserts claims that

arise from materially different operative facts than those alleged in the

original Complaint, are barred by the applicable statutes of limitations, and

would be prejudicial to them since trial is near. (Opp. at 2:4-10.)

A motion to amend a pleading before

trial must include a copy of the proposed amendment or amended pleading, which

must be serially numbered to differentiate it from previous pleadings

or amendments. (Cal. Rules of Court, rule 3.1324, subd. (a).) The motion must

also state what allegations are proposed to be deleted or

added, by page, paragraph, and line number. (Ibid.) Finally, a “separate

declaration must accompany the motion and must specify: (1) The effect of

the amendment; (2) Why the amendment is necessary and proper; (3) When the

facts giving rise to the amended allegations were discovered; and (4) The

reasons why the request for amendment was not made earlier.” (Cal. Rules of

Court, rule 3.1324, subd. (b).)

Here, Plaintiff’s counsel provides a

copy of the proposed FAC, which sets forth the proposed amendments including addition

of three causes of action for: Breach of Fiduciary, Intentional

Misrepresentations, and Negligent Misrepresentations. (Mot. at 4:1-5:21, Exs.

1-2.) Plaintiff’s counsel also attests

that the amendment was not sought earlier due to delays caused by Attorney

Defendants in getting Wulkan’s deposition done, which was initially noticed

back in August 2025. (Id. at 6:4-8:17; Leonard Decl., ¶2.)

With respect to whether the proposed

causes of action are time-barred, “[I]f an amended complaint rests upon the

same general set of facts as the original complaint and refers to the same

action and the same injuries referred to in the original complaint, the amended

complaint will relate back to the original complaint and thus avoid the bar of

the statute of limitations.... This is true even though the amended complaint may rest on a different legal theory or state a different cause of action." (Walton v. Guinn (1986) 187 Cal.App.3d 1354, 1360.) The original Complaint contained allegations that Attorney Defendants failed to exercise reasonable care and skill in performing legal services for Plaintiff related to collection on a monetary judgment. (Compl., ¶¶29-37 [legal malpractice claim].) The proposed amended claims and allegations incorporate by reference all of the allegations in the legal malpractice claim. (Mot., Ex. 2.) Furthermore, the proposed amended claims seek to provide an explanation for the Attorney Defendants' alleged failure to perform legal services with requisite care and skill, i.e., the Attorney Defendants' representations about Wulkan's abilities and expertise as a trial lawyer, which were purportedly false.

To the extent that Attorney Defendants argue that Plaintiff discovered or should have discovered the Attorney Defendants' alleged misrepresentations after seeing Wulkan's trial presentation on or around July 22, 2019, the original 2024 Complaint does not indicate Plaintiff's awareness of the alleged misrepresentations.

In the proposed FAC, Plaintiff alleges that discovery occurred no earlier than when the Court of Appeal issued its decision in connection with the judgment. (Compl., ¶38; Proposed FAC, ¶38.) Moreover, Attorney Defendants

have not shown prejudice will result in having to defend against these proposed amended claims. There is no indication that Attorney Defendants have sought written discovery and/or depositions in this action. Also, the trial is nearly four months away, and there is sufficient time to prepare for and address this issue.

IV. CONCLUSION

Based

on the foregoing, Plaintiff James A. Kay, Jr.'s Motion for Leave to File First

Amended Complaint is GRANTED.

Plaintiff

James A. Kay, Jr. is ordered to give notice.

DATED: June 24, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE

TAKE NOTICE:

- Parties

are encouraged to meet and confer after reading this tentative ruling to see if

they can reach an agreement.

- If

a party intends to submit on this tentative ruling, the party must send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

- Unless

all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

- If

the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.